

24CHCV01028 24CHCV01028

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Case Number: 24CHCV01028 Hearing Date: September 4, 2026 Dept: F49

Dept. F49

Date: 9/4/26

Case Name: SJD Venture, Inc. v. A.R.T. Fitness, Inc.

dba Gym Life Express; Andrew Choi; Ryan Choi; Septimus Mincy; Vic Saroyan;

Gayane Saroyan; Titan 3 Fitness, Inc.; Haig Tatian; Julie Tatian; Paul

Tatian; and Does 1-50

Case No. 24CHCV01028

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 4, 2026

MOTION TO COMPEL

RESPONSES TO REQUEST FOR PRODUCTION

Los Angeles Superior

Court Case No. 24CHCV01028

Motion filed: 4/14/26

MOVING PARTY: Defendants Andrew Choi and Ryan Choi

RESPONDING PARTY: Plaintiff SJD Venture, Inc.

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Plaintiff SJD Venture, Inc. to serve responses, without objections, to Defendants Andrew Choi and Ryan Choi's Requests for Production of Documents, Set One.

TENTATIVE RULING: The motion is GRANTED.

BACKGROUND

This action arises from the alleged failure of Defendants to pay rent and other amounts due pursuant to lease and guaranty agreements. On March 22, 2024, Plaintiff SJD Venture, Inc. ("Plaintiff") filed the Complaint against Defendants A.R.T. Fitness dba Gym Life Express ("A.R.T."), Andrew Choi ("Andrew"), Ryan Choi ("Ryan"), Septimus Mincy, Vic Saroyan ("Vic"), Gayane Saroyan ("Gayane"), Titan 3 Fitness, Inc. ("Titan"), Haig Tatian ("Haig"), Julie Tatian ("Julie"), Paul Tatian ("Paul"), and Does 1 through 50, alleging breach of lease and breach of guaranty.

On September 3, 2024, Titan, Haig, Julie, and Paul filed their joint Answer to the Complaint. On September 9, 2024, Vic and Gayane filed their joint Answer.

On September 12, 2025, Andrew, Ryan, and A.R.T. filed an Answer. On January 21, 2026, the Court struck the Answer as to A.R.T. for failure to obtain representation and failure to appear at the October 9, 2025 Case Management Conference.

On April 14, 2026, Andrew and Ryan (collectively, "Moving Defendants") filed the instant motion to compel Plaintiff to respond to their Requests for Production of Documents, Set One (the "Motion").

On August 25, 2026, Plaintiff filed the declaration of its counsel in opposition to the Motion.

ANALYSIS

A.

Motion to Compel

“A defendant may make a demand for inspection, copying, testing, or sampling without leave of court at any time.” (Code Civ. Proc. § 2031.020, subd. (a).) “Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand,” unless otherwise ordered by the court. (Code Civ. Proc. § 2031.260, subd. (a).)

If a party fails to serve timely responses to a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed waives any objection to the demand, “including one based on privilege or on the protection for work product.” (Code Civ. Proc. § 2031.300, subds. (a).) The Court may, on motion, relieve a party from the waiver of objection if the party subsequently serves a response that substantially complies with the statutory requirements and the failure to serve a timely response “was the result of mistake, inadvertence, or excusable neglect.” (Ibid.)

Andrew declares that he served Moving Defendants' Request for Production of Documents, Set One on Plaintiff on January 30, 2026. (Choi Decl., ¶ 2.) Proof of service submitted by Moving Defendants indicates that the requests were served by first-class mail. (Id., Exh. B.) Responses were accordingly due on March 6, 2026. (Code Civ. Proc., §§ 1013, 2031.260.) Andrew attests that, as of the filing of the Motion, Moving Defendants had not received any responses. (Choi Decl., ¶ 10.)

Based on the foregoing, the Court finds that Plaintiff failed to serve timely responses to the requests, thereby waiving any objections.

Plaintiff submits the declaration of its counsel, Randy S. Snyder (“Snyder”), in opposition to the Motion. Snyder indicates that code-compliant responses to the requests, without objections, had been prepared and would be served the same day upon verification by Plaintiff, rendering the Motion moot. (Snyder Decl., ¶ 3.) While actual service of an objection-free response may resolve the issue presented in the Motion, Snyder's declaration of anticipated service is insufficient to establish actual service. As of the filing of the

declaration, Plaintiff had not yet verified or served the responses, and there is no indication that Snyder secured the verifications and subsequently served the responses. The Court therefore finds that the particular issue presented, failure to serve responses, has not been resolved.

Based on the foregoing, the Court GRANTS the Motion.

CONCLUSION

The Court GRANTS the Motion to Compel Responses to Requests for Production, Set One, filed by Defendants Andrew Choi and Ryan Choi. Plaintiff is ordered to serve verified responses, without objections, to Defendants' Requests for Production of Documents, Set One within 30 days.

Moving party to give notice.